JOSHUA A. BASKIN, State Bar No. 294971
CHRISTINE AU-YEUNG, State Bar No. 294196
WILSON SONSINI GOODRICH & ROSATI
Professional Corporation
One Market Plaza
Spear Tower, Suite 3300
San Francisco, CA 94105-1126
Telephone: (415) 947-2000
Facsimile: (866) 974-7329
Email: jbaskin@wsgr.com
cauyeung@wsgr.com
Attorneys for Plaintiff
Superhuman Platform Inc.

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

SUPERHUMAN PLATFORM INC., a Delaware corporation,

Plaintiff,

v.

1mind AI, Inc., a Delaware corporation,

Defendant.

Case No. 3:26-cv-11711

COMPLAINT FOR TRADEMARK INFRINGEMENT, LANHAM ACT VIOLATIONS, UNLAWFUL AND UNFAIR BUSINESS PRACTICES, AND RELATED CLAIMS

DEMAND FOR JURY TRIAL

Plaintiff Superhuman Platform Inc. ("Superhuman" or "Plaintiff") hereby brings this Complaint against 1mind AI, Inc. ("1mind") and alleges as follows:

INTRODUCTION

1. This action arises out of 1mind's unauthorized use of the SUPERHUMAN trademark for AI services that are highly similar to, and compete with, Superhuman's own, and out of 1mind's attempts to register that mark for itself.

2. Plaintiff Superhuman offers an AI productivity platform that brings AI to wherever people work. Plaintiff Superhuman's AI tools aid professionals with all aspects of their businesses, including sales and customer relationship management.

3. Superhuman has used the SUPERHUMAN mark continuously since at least January 2017. Indeed, since 2019, Superhuman has owned a trademark registration for the mark for, among other goods and services, "providing business information in the field of productivity and efficiency enhancement" and "customer relationship management." *See* Registration No. 5675657, attached as **Exhibit A**. That registration is now incontestable.

4. Since at least 2017, Superhuman has marketed its platform as using AI. Among other things, Superhuman's AI offerings assist companies through their entire sales cycle as well as with customer support. By August 2023, Superhuman was marketing SUPERHUMAN to "high performing sales teams" to help them "close more deals and exceed [their] revenue targets" with features like "embedded CRM data from Superhuman's Salesforce and HubSpot integrations" and "[f]ollow-up Reminders, Snippets, AI and more." Superhuman, *3 Ways to Improve Sales Email Results with Superhuman* (Aug. 1, 2023), https://blog.superhuman.com/sales-email-results/. By May 2024, Superhuman was marketing its AI-powered offering to help sales teams "save time and close more deals" and "move faster and collaborate more effectively." Superhuman, *How to Boost Sales Rep Productivity with Salesforce & Superhuman* (May 27, 2024), https://blog.superhuman.com/improve-sales-productivity-superhuman-salesforce/. Specifically, Plaintiff was advertising SUPERHUMAN features that (1) draft replies, "using Superhuman AI to prepare a full draft in their own voice, from just a few phrases"; (2) follow up at key moments, by setting "a Reminder to follow up in 2 days"; (3)

centralize deal knowledge, because "Superhuman shows Salesforce contacts, leads, accounts, and opportunities right inside your inbox"; and (4) connect to their sales systems, because "[r]eps can update Salesforce from Superhuman, making CRM hygiene seamless." *Id.* In July 2024, Superhuman launched "Superhuman for Sales, with collaborative workflows, artificial intelligence tools, and more." *Superhuman Launches Superhuman for Sales*, destinationCRM (July 25, 2024), https://www.destinationcrm.com/Articles/CRM-News/CRM-Across-the-Wire/Superhuman-Launches-Superhuman-for-Sales-165096.aspx. Superhuman continues to market its AI suite to sales teams today, offering "the right AI agent for every part of the deal cycle." *See* https://superhuman.com/teams/sales.

5. Because of its substantial and long-term presence in the marketplace, and based on the goodwill Plaintiff Superhuman has generated through its own significant marketing efforts, enterprise customers and professionals associate the trademark SUPERHUMAN with AI-powered productivity services that aid enterprise users in all aspects of their jobs, including sales, marketing, and customer relationship management.

6. 1mind is a new company that seeks to free-ride on Plaintiff Superhuman's success. In or around June 2025, 1mind publicly announced a "Superhuman"-branded AI platform directed at the same enterprise functions as Superhuman, including sales and customer relationship management. *See* 1mind, *The Future of AI* (June 26, 2025), https://www.1mind.com/announcements/the-future-of-ai (introducing "Superhumans" to help enterprises "[s]cale revenue with greater efficiency and consistency"). Just as Superhuman's offering "turns every rep into your best," 1mind's "Superhuman" "scales your best [customer success manager] to every account." *Compare* https://superhuman.com/teams/sales, *with* https://www.1mind.com/use-cases/customer-success.

7. 1mind markets its "Superhuman"-branded offering to Superhuman's customers. 1mind's "Superhuman" is "built for B2B revenue teams, including sales, marketing, customer success, product-led growth, and go-to-market teams," and able to "qualify leads, answer product questions, deliver demos, handle objections, support live sales calls, and help move buyers through the sales process." See https://www.1mind.com. In short, both parties use the SUPERHUMAN mark with respect to AI offerings that help sales representatives through the entire sales cycle.

leverage for your team." Asked whether it can help with customer relationship management, it answers: "Yes, especially around turning CRM from a record-keeping system into an action system." Asked about the same capabilities that Superhuman offers (*see* ¶ 4, *supra*), it responds that (1) for "deal-context replies, the Superhuman can use conversation history, CRM context, and approved knowledge to shape the follow-up"; (2) "follow-up can be triggered when a lead engages, shares intent, or hits a meaningful qualification signal"; (3) "1mind can ingest your sales enablement docs, website content, CRM context, call recordings, RFP responses, and past AI conversations so your Superhuman has one always-updating GTM brain"; and (4) "1mind can read and write to CRM and marketing systems."

9. In other words, the services provided by 1mind mirror those Plaintiff Superhuman offers under the SUPERHUMAN mark. And Superhuman was marketing these same AI-powered features long before 1mind launched.

10. In June 2025, upon learning that 1mind had filed a trademark application for SUPERHUMAN, and had begun to use the term "SUPERHUMAN" in conjunction with its offerings, Plaintiff promptly contacted 1mind for a business-level discussion and subsequently put 1mind on notice of its pre-existing use of the SUPERHUMAN mark. Plaintiff also made clear during its business discussions with 1mind that its SUPERHUMAN-branded offerings were expanding further into AI, including further use of AI agents. 1mind therefore knew not only that Plaintiff had longstanding rights in the mark SUPERHUMAN, but also that Plaintiff was expanding those offerings further into the space that 1mind sought to enter under the identical mark. 1mind refused to change course and instead doubled down by filing a second, broader trademark application for SUPERHUMAN in July 2025.

11. Over the ensuing months, Plaintiff nevertheless attempted in good faith to resolve the dispute amicably through commercial negotiations rather than resorting to litigation. Those efforts were unsuccessful. In December 2025, faced with a deadline, Plaintiff filed an opposition against 1mind's first application for the mark SUPERHUMAN (Serial No. 98880288) before the Trademark Trial and Appeal Board ("TTAB"). Even then, 1mind did not change course and continued to infringe Plaintiff Superhuman's trademark rights. Left with no other choice, Plaintiff

SUPERHUMAN PLATFORM INC.'S COMPLAINT CASE NO. 3:26-cv-11711

now brings this action to stop 1mind's ongoing, infringing use of SUPERHUMAN and prevent consumer confusion.

THE PARTIES

12. Plaintiff Superhuman Platform Inc. is a Delaware corporation with its principal place of business in San Francisco, California.

13. On information and belief, 1mind AI, Inc. is a Delaware corporation with its principal place of business in San Francisco, California.

JURISDICTION AND VENUE

14. This action for trademark infringement, false designation of origin, unfair competition, false advertising, and related claims arises under the Lanham Act, 15 U.S.C. § 1051 *et seq.*, including 15 U.S.C. §§ 1114, 1119, and 1125(a), as well as the statutory and common law of the State of California.

15. This Court has subject matter jurisdiction under 28 U.S.C. §§ 1331 and 1338(a) because this action arises under the Lanham Act. This Court has supplemental jurisdiction over the state-law claims under 28 U.S.C. § 1367(a) because those claims are so related to the Lanham Act claims that they form part of the same case or controversy. This Court also has jurisdiction over the state unfair competition claims under 28 U.S.C. § 1338(b) because they are joined with substantial and related claims under the federal trademark laws.

16. This Court has personal jurisdiction over 1mind because, on information and belief, 1mind resides in and maintains its principal place of business in this District. 1mind also conducts substantial business, including developing, testing, and marketing its goods and services, in the State of California and in this District. 1mind markets its SUPERHUMAN-branded platform and services directly to consumers, including consumers in California, through its website, 1mind.com, which is available to users in this District. 1mind's Terms of Use on its website, located at https://www.1mind.com/terms-of-use, are governed by California law.

17. Venue is proper in this District under 28 U.S.C. § 1391(b)(1), (c)(2), and (d) because 1mind resides in this District, and under 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claims stated in this Complaint occurred in this District.

17. Venue is proper in this District under 28 U.S.C. § 1391(b)(1), (c)(2), and (d) because Inmind resides in this District, and under 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claims stated in this Complaint occurred in this District.

18. Pursuant to Civil L.R. 3-2(c) and General Order No. 44, this intellectual property action is subject to district-wide assignment and therefore is not subject to assignment to a particular division.

DIVISIONAL ASSIGNMENT

18. Pursuant to Civil L.R. 3-2(c) and General Order No. 44, this intellectual property action is subject to district-wide assignment and therefore is not subject to assignment to a particular division.

FACTUAL BACKGROUND

19. Superhuman and Its Business

20. Plaintiff's predecessor-in-interest, Superhuman Labs, Inc. ("Superhuman Labs"), was founded in 2014 and launched publicly in 2016. Unless otherwise noted, references to "Superhuman" include Superhuman Labs. Superhuman launched its website at superhuman.com in October 2016, through which it has since promoted and offered its electronic communications and related software products. Superhuman's offering has been used by consumers located throughout the United States, and the SUPERHUMAN brand has developed significant brand recognition and goodwill.

Superhuman and Its Business

19. Plaintiff's predecessor-in-interest, Superhuman Labs, Inc. ("Superhuman Labs"), was founded in 2014 and launched publicly in 2016. Unless otherwise noted, references to "Superhuman" include Superhuman Labs. Superhuman launched its website at superhuman.com in October 2016, through which it has since promoted and offered its electronic communications and related software products. Superhuman's offering has been used by consumers located throughout the United States, and the SUPERHUMAN brand has developed significant brand recognition and goodwill.

20. By 2017, Superhuman was marketing features that utilize AI on its superhuman.com homepage. Over the years, Superhuman has steadily and continually expanded its AI offerings. In May 2023, Superhuman launched a suite of AI-powered features under the SUPERHUMAN mark designed to assist professionals with various aspects of their businesses, including, for example, a "polish your writing" feature that enables users to "fix spelling and grammar, improve clarity, change length, and more." *See* Superhuman, *Superhuman AI* (May 3, 2023), https://blog.superhuman.com/superhuman-ai/ (announcing "Superhuman AI — a suite of new AI features"). Superhuman expanded those AI features throughout 2023 and 2024, adding, for example, an "auto-summarize feature" and extending its AI functionality to its iPhone and iPad apps. Ivan Mehta, *Superhuman Launches AI-Powered Instant Replies*, TechCrunch (Feb. 27, 2024), https://techcrunch.com/2024/02/27/superhuman-launches-an-ai-powered-instant-replies-feature/. Today, Superhuman's AI platform continues to help sales and marketing organizations with all aspects of customer relationship management, including allowing sales teams to "centralize sales knowledge," "track every deal in real time," "[d]raft replies in seconds, grounded

Plaintiff will suffer further harm to its name, reputation, and goodwill. This harm constitutes an injury for which Plaintiff has no adequate remedy at law.

56. 1mind has acted willfully and should be held liable for enhanced damages of up to three times Plaintiff's actual damages, and attorneys' fees pursuant to 15 U.S.C. § 1117(a) in this exceptional case.

SECOND CAUSE OF ACTION

False Designation of Origin

Lanham Act § 43(a)(1)(A), 15 U.S.C. § 1125(a)(1)(A)

57. Plaintiff incorporates by reference and realleges all previous paragraphs as though fully set forth herein.

58. In addition to the SUPERHUMAN Registrations, Plaintiff owns and enjoys valid, enforceable, and fully subsisting common law trademark rights in the SUPERHUMAN, SUPERHUMAN PLATFORM, and SUPERHUMAN GO marks in California and throughout the United States.

59. Plaintiff has held valid and protectable rights in the SUPERHUMAN mark since prior to 1mind's first use of the SUPERHUMAN mark.

60. 1mind has used the SUPERHUMAN mark in commerce in the United States in connection with the sale, offering for sale, distribution, and promotion of its goods and services. 1mind's use of the identical or highly similar SUPERHUMAN mark in commerce constitutes false designation of origin, as it is likely to cause confusion, or to cause mistake, or to deceive consumers as to an affiliation, connection, or association between Plaintiff Superhuman and 1mind, or as to the origin, sponsorship, or approval of 1mind's goods or services by Superhuman and vice versa.

61. As a direct and proximate result of 1mind's wrongful conduct, Plaintiff has been, is now, and will be irreparably injured and damaged, and unless 1mind is enjoined by the Court, Plaintiff will suffer further harm to its name, reputation, and goodwill. This harm constitutes an injury for which Plaintiff has no adequate remedy at law.

FIRST CAUSE OF ACTION

Infringement of Registered Trademarks, Lanham Act § 32, 15 U.S.C. § 1114

24. Plaintiff incorporates by reference and realleges all previous paragraphs as though fully set forth herein.

25. Plaintiff owns the SUPERHUMAN Registrations, which are valid, subsisting, enforceable, and in full force and effect.

26. 1mind has used the SUPERHUMAN mark in commerce, without Plaintiff's consent, in connection with commercial activities that are highly similar to those of Plaintiff. 1mind's use of a mark that is identical or highly similar to the marks covered by the SUPERHUMAN Registrations, together with the similarity of the parties' commercial activities and other relevant factors, is likely to cause confusion, deception, or mistake among consumers in violation of Section 32 of the Lanham Act, 15 U.S.C. § 1114.

27. As a direct and proximate result of 1mind's wrongful conduct, Plaintiff has been, is now, and will be irreparably injured and damaged, and unless 1mind is enjoined by the Court, Plaintiff will suffer further harm to its name, reputation, and goodwill. This harm constitutes an injury for which Plaintiff has no adequate remedy at law.

28. 1mind has acted willfully and should be held liable for enhanced damages of up to three times Plaintiff's actual damages, and attorneys' fees pursuant to 15 U.S.C. § 1117(a) in this exceptional case.

SECOND CAUSE OF ACTION

False Designation of Origin, Lanham Act § 43(a)(1)(A), 15 U.S.C. § 1125(a)(1)(A)

29. Plaintiff incorporates by reference and realleges all previous paragraphs as though fully set forth herein.

30. In addition to the SUPERHUMAN Registrations, Plaintiff owns and enjoys valid, enforceable, and fully subsisting common law trademark rights in the SUPERHUMAN, SUPERHUMAN PLATFORM, and SUPERHUMAN GO marks in California and throughout the United States.

31. Plaintiff has held valid and protectable rights in the SUPERHUMAN mark since

Plaintiff will suffer further harm to its name, reputation, and goodwill. This harm constitutes an injury for which Plaintiff has no adequate remedy at law.

84. 1mind has acted willfully, and Plaintiff is entitled to damages to be proved at trial.

85. 1mind's conduct, as directed by its officers and executives, has been willful and deliberate and has been undertaken with oppression, fraud, or malice, and in conscious disregard of Plaintiff Superhuman's rights, within the meaning of California Civil Code § 3294, entitling Plaintiff to exemplary damages.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff Superhuman respectfully requests that the Court enter judgment against 1mind as follows:

1. Preliminarily and permanently enjoining 1mind, and all persons in active concert or participation with it, from directly or indirectly:

- using the SUPERHUMAN mark, or any other mark, word, company name, trade name, brand name, or product name incorporating or confusingly similar to SUPERHUMAN;
- representing by any means whatsoever that 1mind or its goods and services are associated in any way with Plaintiff Superhuman or its SUPERHUMAN mark;
- doing any other acts calculated or likely to cause confusion or mistake in the mind of the public or to lead others to believe that 1mind's goods or services come from or are the products or services of Plaintiff Superhuman, or are somehow sponsored by or associated with Superhuman; and
- otherwise unfairly competing with Plaintiff Superhuman or misappropriating Superhuman's reputation and goodwill.

2. Ordering 1mind to deliver up for destruction all products, packaging, labels, wrappers, signs, prints, advertisements, electronic files, and other articles bearing the infringing SUPERHUMAN mark.

3. Ordering that 1mind abandon or withdraw 1mind's applications and any other application to register SUPERHUMAN, and, pursuant to 15 U.S.C. § 1119, directing

the Director of the United States Patent and Trademark Office to refuse registration of U.S. Serial Nos. 98880288 and 99303350.

4. Awarding Plaintiff Superhuman its actual damages and 1mind's unjust and unlawful profits arising from 1mind's misconduct.

5. Ordering restitution to Plaintiff Superhuman for 1mind's unjust enrichment and unlawful gains to the detriment of Superhuman.

6. Awarding Superhuman enhanced damages of up to three times its actual damages, and such sum in addition to 1mind's profits as the Court finds just, pursuant to 15 U.S.C. § 1117(a).

7. Awarding exemplary damages in an amount to be determined at trial.

8. Awarding Superhuman its costs of suit, attorneys' fees, and reasonable expenses in this exceptional case.

9. Awarding pre- and post-judgment interest at the maximum rate allowable by law.

10. Ordering an accounting of all gains, profits, and advantages 1mind derived from its infringement and unlawful use of the SUPERHUMAN mark, and directing that such profits be paid over to Plaintiff Superhuman, pursuant to 15 U.S.C. § 1117(a).

11. Ordering 1mind to disseminate corrective notices, in a form approved by the Court, sufficient to dispel any confusion caused by its use of the SUPERHUMAN mark.

12. Requiring 1mind to file with the Court and serve on Plaintiff Superhuman, within thirty (30) days after service of any injunction on 1mind, a report in writing and under oath setting forth in detail the manner and form in which 1mind has complied with the injunction, pursuant to 15 U.S.C. § 1116(a).

13. Granting such other relief as the Court may deem just and equitable.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

(b) Ordering 1mind to deliver up for destruction all products, packaging, labels, wrappers, signs, prints, advertisements, electronic files, and other articles bearing the infringing SUPERHUMAN mark.

(d) Ordering that 1mind abandon or withdraw 1mind's applications and any other application to register SUPERHUMAN, and, pursuant to 15 U.S.C. § 1119, directing the Director of the United States Patent and Trademark Office to refuse registration of U.S. Serial Nos. 98880288 and 99303350.

(d) Awarding Plaintiff Superhuman its actual damages and 1mind's unjust and unlawful profits arising from 1mind's misconduct.

(e) Ordering restitution to Plaintiff Superhuman for 1mind's unjust enrichment and unlawful gains to the detriment of Superhuman.

(f) Awarding Superhuman enhanced damages of up to three times its actual damages, and such sum in addition to 1mind's profits as the Court finds just, pursuant to 15 U.S.C. § 1117(a).

(g) Awarding exemplary damages in an amount to be determined at trial.

(h) Awarding Superhuman its costs of suit, attorneys' fees, and reasonable expenses in this exceptional case.

(i) Awarding pre- and post-judgment interest at the maximum rate allowable by law.

(j) Ordering an accounting of all gains, profits, and advantages 1mind derived from its infringement and unlawful use of the SUPERHUMAN mark, and directing that such profits be paid over to Plaintiff Superhuman, pursuant to 15 U.S.C. § 1117(a).

(k) Ordering 1mind to disseminate corrective notices, in a form approved by the Court, sufficient to dispel any confusion caused by its use of the SUPERHUMAN mark.

(l) Requiring 1mind to file with the Court and serve on Plaintiff Superhuman, within thirty (30) days after service of any injunction on 1mind, a report in

writing and under oath setting forth in detail the manner and form in which 1mind has complied with the injunction, pursuant to 15 U.S.C. § 1116(a).

(m) Granting such other relief as the Court may deem just and equitable.

DEMAND FOR JURY TRIAL

35. Plaintiff demands a trial by jury on all issues so triable.

Dated: October 9, 2026

WILSON SONSINI GOODRICH & ROSATI
Professional Corporation

By: */s/ Joshua A. Baskin*
Joshua A. Baskin

Attorneys for Plaintiff Superhuman Platform Inc.

Dated: October 9, 2026

Respectfully submitted,

WILSON SONSINI GOODRICH & ROSATI
Professional Corporation

By: /s/ Joshua A. Baskin
Joshua A. Baskin
Attorneys for Plaintiff
Superhuman Platform Inc.